

24STCV28160 24STCV28160

County: los-angeles

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Case Number: 24STCV28160 Hearing Date: August 5, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

BNB

WHOLESALE AND DISTRIBUTION, INC.,

Plaintiff,

vs.

OKRID

PLAZA, LLC,

Defendant.

Case No.:

24STCV28160

Hearing

Date:

August 5, 2026

ORDER

DENYING MOTION FOR SUMMARY JUDGMENT

I. BACKGROUND

Defendant Orkid Plaza, LLC

(“Orkid”) allegedly improperly relocated trash receptacles to an unauthorized area behind Orkid’s property (the “subject property”), causing a fire hazard. One or more third-party individuals allegedly started a fire near the area, which eventually spread to the portion of the subject property leased by Plaintiff BNB Wholesale and Distribution, Inc. (“BNB”), destroying BNB’s inventory. BNB sued Orkid for negligence, premises liability, and indemnification.

On April 14, 2026, Orkid filed the instant motion for summary judgment. BNB filed an opposition.

II.

OBJECTIONS

The Court rules on BNB’s objections as follows:

1. Snyder Decl., ¶¶ 2 and 3 – OVERRULED.
2. Separate Statement Fact No. 1 and Snyder Decl. ¶ 4, Exhibit A – SUSTAINED as to lack of authentication and lack of personal knowledge.
3. Separate Statement Fact Nos. 2-5 and Snyder Decl., ¶ 5, Exhibit B – SUSTAINED as to hearsay, lack of personal knowledge, and improper opinion
4. Separate Statement Fact No. 6 and Snyder Decl. ¶ 6, Exhibit C – SUSTAINED as to lack of authentication and lack of personal knowledge.

III. LEGAL STANDARD

A

party may move for summary judgment "if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc. § 437c, subd. (a).[1]) "[I]f all the evidence submitted, and all inferences reasonably deducible from the evidence and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law," the moving party will be entitled to summary judgment. (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

The

moving party bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact, and if he does so, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850, citing to § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

Neither

a moving nor responding party may rely on the mere allegations or denials of its pleadings. A moving party must submit specific admissible evidence showing that the responding party cannot establish at least one element of his, her or its cause of action or defense. The responding party, to defeat the motion, must submit specific admissible evidence showing that a triable issue of material fact does exist as to that element of the cause of action or defense. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

The

"Golden Rule" on a motion for summary judgment or summary adjudication is that "if [a fact] is not set forth in the separate statement, it does not exist." (Zimmerman, Rosenfeld, Gersh & Leeds LLP v. Larson (2005) 131 Cal.App.4th 1466, 1477, citing United Community Church v. Garcin (1991) 231 Cal.App.3d 327, 337.).

IV. DISCUSSION

Orkid requests the Court enter summary judgment as BNB cannot establish evidence demonstrating a duty of

care. "The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury." (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1159.)

The Court finds Orkid has not provided sufficient evidence or analysis to support Orkid's motion. First, the Court notes, all of Orkid's separate statement and exhibits are subject to sustained objections on multiple grounds, including hearsay, lack of authentication, and lack of personal knowledge. Orkid has not presented any admissible evidence, as is required for the Court to grant summary judgment. (§ 437c, subd. (d).) Additionally, while Orkid cited to potentially relevant case law, Orkid provided no analysis of that case law to establish any connection to this case.

The party moving for summary judgment bears the burden of establishing there is no dispute of material fact, entitling the moving party to judgment as a matter of law. As Orkid has not provided any evidence or analysis that would establish Orkid cannot be found liable for causes of action for negligence or premises liability, the Court must deny summary judgment.

Additionally, the Court notes, even if Orkid did prove BNB cannot establish Orkid's duty as to the negligence and premises liability claims, the Court would still be obligated to deny the motion. Orkid's motion solely requests summary judgment; it does not request summary adjudication, in the alternative. Summary judgment may only be granted if it establishes there is no triable issue of material fact and moving party is entitled to judgment as a matter of law as to every cause of action. (§ 437c, subd. (c).) Orkid did not address BNB's cause of action for indemnity in any manner. Therefore, the Court could not grant summary judgment as to the entire action.

The Court denies summary judgment.

V. CONCLUSION

Defendant Orkid Plaza, LLC's motion for summary judgment is DENIED.

BNB is to give notice.

DATED:

August 5, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.